

25STCV06682 25STCV06682

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Case Number: 25STCV06682 Hearing Date: July 9, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

9, 2026

CASE NAME: Steve

Cortez v. General Motors, LLC

CASE NO.: 25STCV06682

MOTION

FOR JUDGMENT ON THE PLEADINGS

MOVING PARTY: Defendant

General Motors, LLC

RESPONDING PARTY(S): Plaintiff Steve Cortez

REQUESTED RELIEF:

1. An

order granting judgment on the pleadings in favor of Defendant General Motors, LLC on the entire first amended complaint.

TENTATIVE RULING:

1. Motion

for judgment on the pleadings is GRANTED as to the first, second, third, and fourth causes of action without leave to amend;

2. Motion

for judgment on the pleadings is DENIED as to the fifth cause of action.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 10, 2025, Plaintiff Steve Cortez (Plaintiff) filed a complaint against Defendant General Motors, LLC (GM) with causes of action for: (1) violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment.

According to the complaint, Plaintiff purchased a 2017 Chevrolet Colorado that allegedly developed engine, transmission, and electrical defects within the warranty period, including stuttering on acceleration, check-engine warnings, and persistent drivability and safety issues. Plaintiff alleges that GM failed to repair the defects after multiple attempts, did not provide the required repurchase or replacement remedy under the Song-Beverly Act, and that the vehicle's value became de minimis. Plaintiff further contends that GM knew of a dangerous 3.6L engine defect, concealed it from consumers, and authorized only superficial repairs that masked but did not fix the underlying problem.

On October 28, 2025, Plaintiff filed the operative first amended complaint (FAC) against GM with the same causes of action.

On December 1, 2025, GM filed an answer.

On May 1, 2026, GM filed the instant motion for judgment on the pleadings. On June 23, 2026, Plaintiff filed an opposition. On July 1, 2026, GM filed a reply.

LEGAL STANDARD:

Judgment on the Pleadings

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A defendant may move for judgment on the pleadings if (i) the court does not have jurisdiction of the subject of the cause of action alleged in the complaint, or (ii) the complaint does not state facts sufficient to constitute a cause of action alleged in the complaint. (Cal. Code Civ. Proc. (CCP) § 438(b)(2), and subd. (c).) "The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer: We treat the pleadings as admitting all of the material facts properly pleaded, but not any contentions, deductions or conclusions of fact or law contained therein. We may also consider matters subject to judicial notice." (Dunn v. County of Santa Barbara, (2006) 135 Cal. App. 4th 1281, 1298.)

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The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP § 430.30(a); Blank v. Kirwan, (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal. App. 4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (Ibid.)

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A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (Blank v. Kirwan, supra, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co., (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal. 3d at p. 318.)

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Meet and Confer

§§§§

As with demurrers and motions to strike, and subject to enumerated exceptions, the parties are required to meet and confer prior to filing a motion for judgment on the pleadings. (CCP § 439, § 430.41, § 435.)

Here, the parties met and conferred telephonically on December 23, 2025. (Seebart Decl. ¶ 2.) This requirement is therefore met.

ANALYSIS:

Request for Judicial Notice

The court GRANTS GM's request for judicial notice of the list of manufacturers that have opted in to CCP § 871.20 et seq as maintained on the California Department of Consumer Affairs' government website as of November 10, 2025. (Evid. Code § 452(c), (h).) See *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.5th 23,37.)

However, the court only takes judicial notice of the foregoing documents only as to "the existence, content and authenticity of public records and other specified documents"; it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400.)

Statute of Limitations

Defendant contends each cause of action is time-barred.

Plaintiff argues (1) section 871.21's time limits cannot be applied retroactively to express warranty claims; (2) section 871.21 does not apply to matters filed prior to July 1, 2025, and even if it did apply, equitable tolling saves the FAC; and (3) section 871.21's limits do not apply to inadequate literature claims under Civil Code section 1793.2(a)(3).

Defendant replies that the Legislature expressly applied the statute retroactively with a three month grace period, Plaintiff chose not to

file within the grace period, and the statute applies in full. They add that tolling does not save the FAC as insufficiently plead.

First,

Second, and Third Causes of Action

The Lemon Law Statute of Limitations for breach of express warranty is one year after the expiration of the applicable warranty, with exceptions. (See Code Civ. Proc., §§ 871.21, 871.24 [consumer prelawsuit notice requirements]; Civ. Code § 1793.22, subd. (c).)

Code of Civil Procedure section 871.21 states:

(a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

The effective date of CCP sections 871.20 and 871.21 (“statutes of repose”) are January 1, 2025. (See Legis. Counsel's Dig., Sen. Cone. Amends. to Assem. Bill No. 1755 (2023-2024 Reg. Sess.))

Plaintiffs purchased the Vehicle on March 13, 2017. (FAC ¶ 6.) The express warranty covering the engine defect is the powertrain limited warranty, which runs for up to five years or 60,000 miles. (FAC, Exhibit A.) So, the powertrain warranty covered the period until March 13, 2022. CCP § 871.21 provides one additional year – March 13, 2023. Plaintiffs filed this action on March 10, 2025. Either way, Plaintiffs filed this action more than six years after purchasing the Subject Vehicle. It is untimely. The court rejects Plaintiff's arguments as unpersuasive.

Accordingly, the court GRANTS GM's motion for judgment on the pleadings on these claims without leave to amend. 6

Fourth

Cause of Action

As for the implied warranty claim, it too is untimely.

The Song–Beverly Act does not contain its own statute of limitations. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 215–218.) Courts therefore apply the statute governing breach of warranty claims under the Uniform Commercial Code—Commercial Code section 2725. (*Krieger, supra*, at p. 215.) Commercial Code section 2725 provides that “[a]n action for breach of any contract for sale must be commenced within four years after the cause of action has accrued,” and that a cause of action accrues “when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach.” (Com. Code, § 2725, subds. (1), (2).) A breach of warranty occurs upon tender of delivery. (*Ibid.*) Accordingly, the statute of limitations for a claim alleging breach of the implied warranty of merchantability under the Song–Beverly Act is four years. (*Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.)

Section 2725, subdivision (2), expressly rejects a delayed-discovery rule for warranty claims by providing that accrual occurs when the breach occurs, “regardless of the aggrieved party’s lack of knowledge.” California courts have confirmed that there is ordinarily no delayed-discovery rule applicable to breach of implied warranty claims. (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 129, 134.) As *Cardinal Health* explained, when California adopted the UCC statute of limitations, it expressed a clear intent to follow the uniform rule establishing tender of delivery as the accrual date unless the plaintiff demonstrates that the warranty “explicitly extends to future performance.” (*Id.* at p. 132.)

The statute recognizes a narrow exception: where a warranty explicitly extends to future performance and discovery of the breach must await the time of such performance, accrual occurs upon discovery. (Com. Code, §

2725, subd. (2).) But that exception does not apply to implied warranties.

As Cardinal Health squarely

held, the future-performance exception cannot apply to implied warranties

because an implied warranty “arises by operation of law rather than an express agreement.” (Cardinal Health,

supra, at p. 134.) Unlike express warranties, which are contractual in

nature, the implied warranty of merchantability arises by operation of law. (Hauter v. Zogarts (1975) 14

Cal.3d 104, 117.) By definition, an implied warranty cannot

“explicitly” extend to future performance. Accordingly, delayed discovery

does not postpone accrual of an implied warranty claim. Subdivision (4) of

section 2725 further provides that “[t]his section does not alter the law on

tolling of the statute of limitations,” reinforcing that the accrual

rule set forth in subdivision (2) governs.

Plaintiff relies on Mexia

v. Rinker Boat Co. (2009) 174 Cal.App.4th 1297 to argue that an

implied warranty claim does not accrue until a latent defect is

discovered. That reliance conflates the duration of the warranty with

the accrual of the cause of action. Civil Code section 1791.1, subdivision

(c), provides that the duration of the implied warranty of merchantability

shall be coextensive with an accompanying express warranty, but “in no event

shall such implied warranty have a duration of less than 60 days nor more than

one year following the sale of new consumer goods to a retail buyer.” In Mexia, the Court of Appeal held that the

implied warranty has a limited prospective existence during that statutory

duration and may be breached by a latent defect existing during that

period—even if the defect is not discovered until later. (Id. at pp. 1304–1306, 1311.) The court explained that in

the case of a latent defect, the warranty is breached by the existence of the

defect, not by its subsequent discovery. (Id. at pp. 1304–1305.)

Importantly, Mexia did

not alter the statute of limitations or create a delayed-discovery accrual rule

for implied warranty claims. To the contrary, Mexia quoted section 2725 and

recognized that a breach of warranty occurs upon tender of delivery. (Mexia, supra, 174 Cal.App.4th at pp. 1304–1305.) The holding

concerned the duration of the warranty, not accrual for statute-of-limitations

purposes. Duration and accrual are distinct concepts. The duration provision

defines the period during which the warranty exists and may be breached. The

statute of limitations defines the time within which suit must be filed after

accrual.

In summary, under Civil Code section 1791.1, subdivision (c), the implied warranty of merchantability for new consumer goods has a maximum duration of one year from sale. Any breach must occur within that one-year period. Under Commercial Code section 2725, however, the cause of action accrues when the breach occurs—i.e., at tender of delivery—regardless of the buyer's lack of knowledge.

The future-performance exception does not apply to implied warranties. Thus, the statute of limitations begins to run upon accrual and expires four years thereafter. Accordingly, the statute of limitations accrues no later than the end of the implied warranty's one-year statutory duration and expires no later than four years thereafter. Because there is no delayed-discovery rule applicable to implied warranty claims under the Song-Beverly Act, any action filed beyond that four-year period is untimely as a matter of law.

Here, based on the allegations in the FAC, delivery of the Subject Vehicle occurred on or about March 13, 2017. (FAC ¶ 6.)

Thus, under the Song-Beverly Act for breach of the implied warranty thus accrued, and the statute of limitations on the claim started running, at that point. Even extending the accrual date by one year to March 13, 2018, the statute of limitations expired for the implied warranty claim ran on March 13, 2022. Since the complaint was filed on March 10, 2025, the statute of limitations on the face of the complaint had long since expired.

Accordingly, the court GRANTS GM's motion for judgment on the pleadings on this claim without leave to amend.

Fifth

Cause of Action

The statute of limitations for a fraud concealment claim is three years. (CCP § 338(d).)

"[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action." (Fox v. Ethicon Endo-Surgery, Inc. (2005)

35 Cal.4th 797, 803.)“Generally speaking, a cause of action accrues at “the time when the cause of action is complete with all of its elements.” (Id. at p. 806.)“A plaintiff has reason to discover a cause of action when he or she “has reason at least to suspect a factual basis for its elements.” (Id. at p. 807)“Under the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period.” (Ibid.)A plaintiff must “must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (Ibid.)

This claim is not time-barred on its face. To start, Plaintiff alleges that the nonconformities to warranty manifested during the warranty period. (FAC ¶ 11.) As noted above, this was within 5 years of his purchase on March 13, 2017 – March 13, 2022. Plaintiff filed this action within three years of March 13, 2022 – March 10, 2025. Thus, this claim is timely.[1]

Accordingly, the court DENIES GM's motion for judgment on the pleadings as to the fraud claim.

For the foregoing reasons, the court decides the pending motion as follows:

1. Motion

for judgment on the pleadings is GRANTED as to the first, second, third, and fourth causes of action without leave to amend;

2. Motion

for judgment on the pleadings is DENIED as to the fifth cause of action.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 9, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

The court declines to develop GM's new arguments on reply.